



# KIOWA TRIBE

**P.O. Box 369 • Carnegie, Oklahoma • 73015**  
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**OFFICE OF THE LEGISLATURE**

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## AMENDED RESOLUTION #KL-CY-2026-003

### AMENDED RESOLUTION OF THE KIOWA TRIBE LEGISLATURE AUTHORIZING SOVEREIGN BANK ACCOUNTS, SIGNERS, POWERS GRANTED AND LIMITATIONS

At a duly called Session of the Legislature of the Kiowa Tribe held on the 21<sup>st</sup> day of June 2024, Resolution KL-CY-2024-011 was adopted directing Kiowa Tribe Elected Officials Lawrence Spottedbird, Chairman, and Jacob Tsothigh, Vice-Chairman, to establish bank accounts for the Kiowa Tribe at Sovereign Bank, a bank owned by the Citizen Potawatomi Nation with a branch in Lawton, Oklahoma. Sovereign Bank is hereinafter referred to as “the Bank.”

The removal of Vice-Chairman Tsothigh from his office in 2024 required amendments codified into KL-CY-2025-016.

The impeachment of Lawrence SpottedBird on March 2, 2026, and departure of William Weaver, former Treasurer and Chief Financial Officer of the Tribe, in December 2025 mandate further amendment to signatory authorities. Accordingly, this enactment shall supersede KL-CY-2024-011 and KL-CY-2025-016.

**WHEREAS**, the Kiowa Tribe (the “Tribe”) is organized under a constitution, duly adopted and approved by the voters of the Tribe on April 17, 2017 and approved by the U.S. Secretary of the Interior (“Secretary”)(the “Constitution”); and,

**WHEREAS**, pursuant to Article VI, Section 6(a) of the Constitution, the Legislature is vested with the authority to pass laws and resolutions, including the power to authorize the Chairman to enter into contracts for financial and banking services; and,

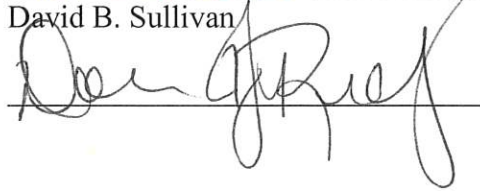
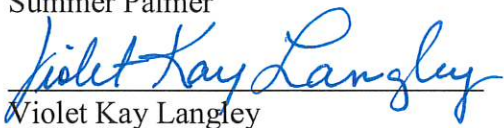
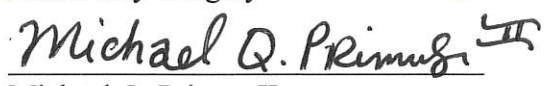
**WHEREAS**, the Tribe has a need to invest and secure its financial resources; and

**WHEREAS**, the Tribe has determined that maintaining the existing banking relationship with Bank is necessary at this time for continuity of operations; and

**WHEREAS**, the Bank has requested the Tribe to determine who is officially authorized to act as Agents for the Tribe and to exercise certain powers as indicated below;

**NOW THEREFORE BE IT RESOLVED**, that the Legislature hereby authorizes the following persons and positions to be designated agents of the Tribe in all transactions with the Bank:



| Name and Title or Position                 | Signature                                                                                                                         |
|--------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------|
| A) <u>Kiowa Tribal Chairman</u>            | <br>David B. Sullivan                           |
| B) <u>Kiowa Tribal Vice-Chairman</u>       |                                                 |
| C) <u>Tribe's Chief Financial Officer</u>  |                                                                                                                                   |
| D) <u>Deputy Chief Financial Officer</u>   | <br>Summer Palmer                               |
| E) <u>General Ledger Accountant</u>        | <br>Violet Kay Langley                          |
| F) <u>Kiowa Tribal Legislative Speaker</u> | <br>Michael Q. Primus II<br>and/or His Designee |

**BE IT FURTHER RESOLVED** that the following powers are granted to the persons named above by listing the letter corresponding to their respective office or title before each authority. The chart below describes each authority, the number of signers needed, and any limitations on such authority.

**BE IT FURTHER RESOLVED** that any Member of the Tribe appointed by Chairman Sullivan to the office of Vice-Chairman of the Tribe shall be authorized by this enactment to exercise all authorities assigned herein to Title/Position B provided that such appointee meets the criteria to serve in the Vice-Chairmanship delineated in the Kiowa Constitution and Tribe law. No additional amendment shall be required for the appointee to discharge the powers enumerated herein.

**BE IT FURTHER RESOLVED** that any person named by Chairman Sullivan to the position of Tribe Chief Financial Officer in a permanent capacity shall be authorized by this enactment to exercise all authorities assigned herein to Title/Position C provided they have never been convicted of a crime involving financial misconduct or been subject to sanctions by any financial regulatory entity. No additional amendment shall be required for the appointee to discharge the powers enumerated herein.

**BE IT FURTHER RESOLVED** that this enactment supersedes and replaces all prior laws of the Tribe as well as written or oral contracts and, in the event of a conflict, the provisions herein shall govern.

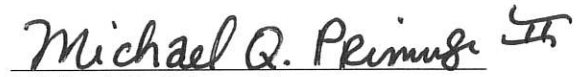
- A, B, C 1) Open or close (a) financial account(s) at the Bank in the name of the Tribe. (IF C exercises this power, either A or B must sign). For a financial account to be closed, a complete reconciliation of that account must be completed by a Certified Public Accountant, who shall attest, under oath, that the account balance was correct at the time of closing, and both prior written notice and a copy of the foregoing attestation must be transmitted to the Legislature.
- A, B, C, D, E 2) Endorse checks and orders for the payment of money or otherwise withdraw or transfer funds on deposit with the Bank. (If C, D, or E exercises this power, either A or B must sign)
- A, B 3) Borrow money on behalf of and in the name of the Tribe from the Bank, and sign, execute, and deliver promissory notes or other evidence of indebtedness to the Bank. This power requires additional prior authorization from the Legislature. This resolution signifies prior authorization from the Legislature for P-Cards or Credit Cards to be obtained for the signatories above or their designees. All statements for P-cards or credit cards obtained on behalf of the signatories above or their designees shall be made available within fifteen (15) business days upon request from the Legislature. Designees must be permanent, full-time employees of the Tribe, and a complete list of all existing credit cards connected to the Tribe shall be made available to the Legislature within twenty-four (24) hours of request.
- A, B, C, D 4) Endorse, assign, transfer, mortgage, or pledge bills receivable, warehouse receipts, bills of lading, stocks, bonds, real estate or other property to the Bank now owned or hereafter owned or acquired by the Tribe as security for sums borrowed, and to discount the same, unconditionally guarantee payment of all bills received, negotiated or discounted, and to waive demand, presentment, protest, notice of protest and notice of non-payment.
- A, B, C, D 5) Enter into a written lease or other agreement with the Bank for the purpose of maintaining one or more safe deposit boxes. Itemization of safety deposit boxes and their contents must be transmitted to the Legislature within fifteen (15) business days of opening or the enactment of this law as applicable.
- F 6) The Speaker of the Legislature or his Designee may exercise Inquiry Authorization for all accounts at the Bank. This Inquiry Authority may be exercised by the Speaker of the Legislature or his Designee without any other signature nor any additional authorization. The Speaker may identify as his Designee an elected member of the Legislature via signed and dated notice transmitted to the Legislature and the Bank.

**FINALLY, BE IT RESOLVED**, the Legislature declares:

- 1) The Bank is designated as a depository for the funds of the Kiowa Tribe and is to provide other financial accommodations as indicated by this Resolution;
- 2) This Resolution shall continue to be in full force and effect until its rescission or modification. Any revocation, modification, or replacement of this resolution must be accompanied by a Resolution from the Legislature, duly promulgated, bearing signatures showing passage, agreement by the Chairman, or a veto-override by the Legislature, and also bearing the official seal of the Legislature;
- 3) The Chairman or his designee shall cause reports reflecting data from all accounts associated with the Bank to be transmitted to the Legislature by the 1<sup>st</sup> of January, 1<sup>st</sup> of April, 1<sup>st</sup> of July, and 1<sup>st</sup> of October in each year.
- 4) The signature of an Agent identified in this resolution is conclusive evidence of their act on behalf of the Kiowa Tribe subject to the powers and limitations set out above. Any Agent, so long as they act in a representative capacity as an Agent of the Tribe, is authorized to make any and all other contracts, agreements, stipulations, and orders with the Bank which may from time to time be necessary and appropriate to effectuate their authority; however, a signatory may not expand his authority beyond the limits set out in this resolution;
- 5) All transactions, if any, with respect to any deposits, withdrawals, rediscounts, and borrowings by or on behalf of the Tribe with the Bank prior to the adoption of this resolution which have been accounted for to the Legislature in the annual budget process and which have passed review by an independent auditor are hereby ratified, approved and confirmed.
- 6) If signed in accordance with this Resolution, the Bank shall debit or credit the Tribe's account in accord with any agreement between the Tribe and the Bank. The Bank may also charge the Tribe for all necessary and usual expenses that are set out in any agreement with the Tribe, including checks, drafts, or other orders for the payment of money so long as the charges are reasonable, and comply with the requirements of Kiowa, Federal or any applicable State law and are not deemed illegal or improper by any Court of Law.
- 7) The Tribe acknowledges and agrees that the Bank may furnish at its discretion automated access devices to Agents of the Tribe to facilitate those powers authorized by this resolution or other resolutions in effect at the time of issuance. The term "automated access device" includes, but is not limited to, purchase cards (aka "P-cards"), credit cards, automated teller machines (ATM), debit cards, and electronic access to records and statements.

## CERTIFICATION

The foregoing Amended Resolution KL-CY-2026-003 was duly voted upon by the Legislature on March 09, 2026, at Legislative Special Session I-(4), with a vote of (0) in favor and (0) opposed, (0) abstaining, and (3) absent, according to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

  
Michael Q. Primus II  
Speaker of the Legislature

### THIRD AMENDED LEGISLATIVE RESOLUTION –KL-CY-2026-003

**Sponsors:** Cole DeLaune, District 4.

**Co-Sponsors:**

| LEGISLATORS                         | YES<br>Hàu | NO<br>Hàu:né | ABSTAIN<br>Háun á | ABSENT<br>Héngyádàu  |
|-------------------------------------|------------|--------------|-------------------|----------------------|
| Kyle Ataddlety<br>District 1        | X          |              |                   |                      |
| Michael Q. Primus II<br>District 2  | X          |              |                   |                      |
| Timothy Satepauhoodle<br>District 3 |            |              |                   | X                    |
| Cole DeLaune<br>District 4          | X          |              |                   |                      |
| Tiya Rosario<br>District 5          | X          |              |                   |                      |
| Ben Wolf<br>District 6              |            |              |                   | X                    |
| Warren Queton<br>District 7         |            |              |                   | X<br>Out of District |

#### DELIVERY OF THE RESOLUTION AND LAW TO THE CHAIRMAN

Amended Resolution No. KL-CY-2026-003 was presented to the Chairman of the Kiowa Tribe on March 10, 2026, pursuant to the Article VI, Section 8(a)(iv) of the Constitution of the Kiowa Tribe, and will become effective after signature by the Chairman or veto override by the Legislature, and as otherwise required by the Constitution.



Michael Q. Primus II  
Speaker of the Legislature

**CHAIRMAN'S ACTION:**

☒ APPROVED

☐ VETO - RETURNED TO LEGISLATURE WITH EXPLANATION:

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On this 11 day of March, 2026.



David B. Sullivan  
Chairman of the Kiowa Tribe

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Presented by the Chairman to the Legislature on the \_\_\_\_ day of \_\_\_\_\_, 2026.

**LEGISLATURE'S ACTION:**

**Override of Chairman's veto:**

☐ YES

☐ NO

LEGISLATIVE OVERRIDE ORDER: KLO-CY-2026-0XX

| LEGISLATORS                         | YES | NO | ABSTAIN | ABSENT |
|-------------------------------------|-----|----|---------|--------|
| Kyle Ataddlety<br>District 1        |     |    |         |        |
| Michael Q. Primus II<br>District 2  |     |    |         |        |
| Timothy Satepauhoodle<br>District 3 |     |    |         |        |
| Cole DeLaune<br>District 4          |     |    |         |        |
| Tiya Rosario<br>District 5          |     |    |         |        |
| Ben Wolf<br>District 6              |     |    |         |        |
| Warren Queton<br>District 7         |     |    |         |        |

**C E R T I F I C A T I O N**

The foregoing Legislative Order, KLO-CY-2026-00X was duly voted upon by the Legislature on \_\_\_\_\_, 2026, at a Legislative Override Order Session with a vote of \_\_\_\_\_ in favor and \_\_\_\_\_ opposed, and \_\_\_\_\_ abstaining, \_\_\_\_\_ Absent. Pursuant to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

\_\_\_\_\_  
Michael Q. Primus II  
Speaker of the Legislature